

13 August 2025



ATT: Jeffrey Peng
Planning Officer
Department of Planning and Environment

24-28 Campbell St
Sydney NSW 2000
All mail to
GPO Box 4009
Sydney NSW 2001
T +61 2 13 13 65
ausgrid.com.au

Dear Jeffrey,

In reference to 23-25 Waterloo Road Data Centre (SSD-91297457).

Ausgrid would like to thank you for seeking input and feedback regarding the advice for SEAR's.

Ausgrid recommends the addition of the following to the SEARS under Utilities:

In consultation with relevant agencies prepare a services and utilities impact assessment which:

- assesses the capacity of existing services and utilities and identify any upgrades required to facilitate the development.
- assesses the impact of the proposal on existing utility infrastructure and service provider assets and describes how any potential impacts would be managed.

Please do not hesitate to contact me for further information.

Regards,

A handwritten signature in black ink, appearing to read "Jim Danks".

Jim Danks - Project Officer - Asset Protection
jdanks@ausgrid.com.au
0457 803 587

28 August 2025

TfNSW Reference: SYD25/01034
Department Reference: SSD-91297457

Ms Kiersten Fishburn
Secretary
Department of Planning, Housing and Infrastructure
Locked Bag 5022
Parramatta NSW 2124

Attention: Jeffrey Peng

**SEARS REQUEST – SHOP TOP HOUSING DEVELOPMENT
601 PACIFIC HIGHWAY, ST LEONARDS**

Dear Ms Fishburn,

Reference is made to the Department of Planning, Housing and Infrastructure (DPH&I) referral dated 19 August 2025 on the Major Projects Portal regarding the abovementioned SEARs request, which was referred to Transport for NSW (TfNSW) for comment in accordance with Section 2.122 and Schedule 3 of *State Environmental Planning Policy (Transport and Infrastructure) 2021*.

TfNSW has reviewed the Scoping Report and advises of the Agency's requirements as contained in **TAB A**.

Should you have any further inquiries in relation to this matter, please do not hesitate to contact Hans Pilly Mootanah by email at development.sydney@transport.nsw.gov.au.

Yours sincerely,



Vic Naidu
A/Senior Land Use Planner
Land Use Assessment Eastern
Transport Planning | Planning, Integration and Passenger

1. **Macquarie Park Transport Strategy:** The Macquarie Park Transport Strategy involves ongoing projects and plans by Transport for NSW and the City of Ryde to improve connectivity, reduce congestion, and enhance public transport for the rapidly growing commercial and residential precinct. Key initiatives include upgrades to the Macquarie Park Precinct and Bus Interchange, road and intersection improvements for bus priority, and the identification of the precinct as a Transport Oriented Development (TOD) area to encourage housing and public spaces near transport hubs. As such, the proposal should demonstrate compliance with the adopted strategies.
2. **Transport and Accessibility Impact:** The Development Application (DA) submitted must include a Transport and Accessibility Impact Assessment prepared in accordance with the requirements of TfNSW's Guide to Transport Impact Assessment, version 1.1 or as updated. The Transport and Accessibility Impact Assessment will enable TfNSW to understand the impacts the development may have on the state classified road network that it manages as well as the impacts from local road connections with the state classified road network as a consequence of increased vehicular, bus and active transport movements.
3. **Bicycle Parking:** Bicycle parking and end of trip facilities are to be designed to the quantity and quality of design that reflect Transport Orientated Development design. For bicycle parking and end of trip facilities, the layout, design and security of bicycle facilities must comply with the minimum requirements of:
 - Australian Standard AS 2890.3:2015 Parking Facilities Part 3: Bicycle Parking Facilities;
 - 'Austroads Bicycle Parking Facilities: Guidelines for Design and Installation'; and;
 - Councils DCP.
4. **Active Transport:** The development should design streets that are reflective of NSW Futures and NSW Active Transport Strategy including:
 - Delivering integrated land use and transport planning connecting people to their local metro centre and strategic centres within 30 minutes by public transport;
 - Enable 15-minute neighbourhoods;
 - Deliver connected and continuous cycling networks; and
 - Promote safer and better precincts and main streets.
5. **Green Travel Plan:** A Green Travel Plan (GTP) is to be provided to demonstrate a commitment to sustainable transport and modal shift. It is recommended that a Travel Access Guide (TAG) be prepared and included as an appendix in the GTP. TfNSW has developed a Travel Plan Toolkit designed for the person or group responsible for developing and implementing a Travel Plan. This toolkit provides the steps, templates and resources for developing a comprehensive Travel Plan.

Jeffrey Peng
Department of Planning, Industry and Environment

Email: jeffrey.peng@dpie.nsw.gov.au

01 September 2025

Our Ref: COR2025/0452

Attn: Jeffrey Peng

Dear Jeffrey,

Request for SEARs – Expansion of Data Centre – 23-25 Waterloo Road, Macquarie Park

Thank you for the opportunity to comment on the Secretary's Environmental Assessment Requirements (SEARs) for the proposed development at 23-25 Waterloo Road, Macquarie Park.

A list of deliverables is included in **Part 1** which is to be read in conjunction to the Specific Department Comments under **Part 2**.

Also note that this submission is made in absence of any draft SEARs provided to Council. Council is not made aware as to what other standard requirements will apply. Only the critical matters have been included.

Council requests that the requirements as outlined in the attached response are included in the SEARs.

Council reiterates the importance of quality and considered consultation with stakeholders including City of Ryde Council. The applicant is advised that they should undertake detailed engagement with Council on numerous aspects of the proposal. City of Ryde Council offers a paid pre-lodgement service that will apply to any engagement the applicant seeks to engage with Council on

If you require any additional information regarding this matter, please contact Shannon Butler – Senior Town Planner on 0481 383 807 or email to shannonb@ryde.nsw.gov.au

Yours sincerely

Kandace Lindberg
Executive Manager City Development

RESPONSE TO SEARs REQUEST - CITY of RYDE

Project: State Significant Development Application (SSD-91297457) for expansion of data centre

Location: 23-25 Waterloo Road, Macquarie Park

Applicant: Willowtree Planning

Council Reference: COR2025/452

The City of Ryde requests that the following matters be addressed/included, in addition to the standards SEARs requirements:

Part 1 – Deliverables

1.0 Voluntary Planning Agreement (VPA) and Contributions

Key Issue

The Applicant is seeking to utilise the incentive provisions under clause 7.7 of the *Ryde Local Environmental Plan 2014* (RLEP 2014). The provision of that clause warrants the execution of a Voluntary Planning Agreement (VPA) with Council. Prior to the submission of the EIS, the applicant is to engage directly with Council on the terms and requirements of the VPA.

The SEARs should request details of Council's agreement to enter into a VPA with the applicant and ensure that sufficient infrastructure is provided for the development.

Prior to the submission of the EIS, the applicant is to engage directly with Council on the terms and requirements of any VPA. The SEARs should request details of Council's agreement to enter into a VPA with the applicant and ensure that sufficient infrastructure is provided for the development.

Required Report/Outcome

- Applicant is to engage with Council in respect of a proposed VPA that addresses the relevant infrastructure requirements to support the development.
- A draft letter of offer is to be submitted with the EIS.

2.0 General Documentation/Deliverables Requirements

2.1 Development of the Site

2.1.1 Plans

- Architectural Plans (scaled and dimensioned) to include (but not limited to):
 - Schedule Tables of key numeric features to include:
 - Gross Floor Area
 - Car parking (per basement level and total).
 - Sections through the highest points of the development relative to existing ground level (referencing the extrapolated ground level method (*Bettar v*

Council of the City of Sydney, [2014] NSWLEC 1070) and existing ground level method (*Merman Investments Pty Ltd v Woollahra Municipal Council [2021] NSWLEC 1582*).

- Site Analysis to include impact on surrounding area.
- Height Plane Diagrams.
- Gross Floor Area (GFA) plans (to include numeric provision).
- Deep Soil Area plans (to include numeric provision).
- Bulk Excavation Plan.
- Schedule of Materials and Finishes.
- Landscape Plans (prepared by a qualified Landscape Architect) to respond to the City of Ryde Public Domain Technical Manual. Public Domain paving and street tree planting and to include:
 - Landscape Masterplan.
 - Landscape Design Statement.
 - Landscape Softworks Plans(s).
 - Species selection.
- Civil Plans (Public Domain) to include (see Part 3.0 under the Supplementary Commentary):
 - Concept Plan showing arrangement of public domain upgrade works fronting the site and connecting with existing adjoining public domain infrastructure.
 - Location/s and details of vehicular crossings. Design of vehicular crossings are to be as per Council DCP and relevant Australian Standards.
 - Swept path analysis used for the largest vehicle used for the development.
 - Building access levels from footpath at public domain.
 - Landscape plans and arborist report showing the impact of existing trees at public domain due to the development.
 - Survey plans showing the location of existing infrastructure such as pram ramp, council lintel pits roundabout, traffic signals and median islands. Surveys should also include levels for boundary, existing road and kerb and gutter.
- Stormwater Drainage Plans to be provided and reflect the following (see Part 2.0 under the Supplementary Commentary):
 - Detailed stormwater management plan to be prepared and indicate the method of site drainage.
 - Drainage network capacity analysis must be demonstrated to ensure the proposed development can be effectively drained and managed via the downstream drainage network.
 - Identification of any upgrades to existing drainage system required to support the proposed development.
 - Stormwater pollution protection devices.
- Boundary identification Survey Diagram to include (but not limited to):
 - Boundary locations and dimensions.
 - Spot levels.
 - Easements.

2.1.2 Supporting Documentation

- Environmental Impact Statement (EIS) including details of ongoing operational requirements.
 - The EIS is to provide details and demonstrate the site benefits from Existing use rights as the data centre is prohibited in the zone.

- Statutory Compliance Assessment to provide compliance tables of the proposal against the following:
 - Ryde Local Environmental Plan
 - Macquarie Park Design Guide
 - Ryde Development Control Plan 2014.
- Detailed and itemised quantity surveyor report prepared by a member of the AIQS.
- Urban Design Study
- Request(s) to vary a development standard (Clause 4.6) if applicable. If a variation to the Height of Buildings (Clause 4.3) is proposed, the Clause 4.6 will be required.
- Design Report.
- Arboricultural Impact Assessment (AIA).
- Visual Impact Assessment (depicting views of the development from key vantage points).
- Noise and Vibration Impact Assessment, noting the construction noise and vibration impacts on nearby residences).
 - The Acoustic Assessment the developments noise generation (generators) and impact on future development (Wick's Park/ surrounding residence).
- Traffic and Parking Impact Assessment (TPIA) including items outlined in Part 4.0 of the Supplementary Commentary):
 - SIDRA Network Modelling Analysis.
 - Vehicle Swept Path diagrams.
 - Demonstrate that the proposal satisfies the vision and objectives of the Ryde Integrated Transport Strategy.
- Pedestrian Wind Impact Assessment report.
- Preliminary Site Investigation (PSI) and any subsequent contamination reports stemming from the results of the PSI.
- Subsurface Infrastructure Details (see Part 3.0 of the Supplementary Commentary)
- Air Quality Assessment.
- Groundwater Assessment.
- Hazardous Material Assessment.
- Details of any Cooling Towers proposed.
- Detailed Landscape plan that is consistent with:
 - Waterloo Road Master plan
 - Macquarie Park Design Guide
- Details of proposed fuel storage.
- Construction Management Plan.
- CPTED Assessment.
- Public Art Plan
- Waste Management Plans but not limited to:
 - Operational.
 - Construction and Demolition.

Part 2 – Supplementary Commentary

2.0 Specific Department Comments

The following provides supplementary/explanatory comments from Council departments to items included in the above list.

2.0 Planning Matters

Existing Use Rights

As the development seeks to utilise existing use rights to alter and expand a prohibited land use, the EIS must demonstrate the site benefits from existing use rights and has not abandoned the existing use.

Ground Floor Development in the E3 Zone

As part of the site is zoned E3 under the RLEP 2014, Clause 6.7 of the RLEP applies to the development. Clause 6.7 is a precondition of consent that requires commercial activities located on the ground floor. The development must satisfy this precondition and ensure that the ground floor of the development is used for commercial activities

Fencing

The Plans indicate that 2.4m Palisade fencing is proposed around the development. The EIS must demonstrate an alternative security strategy to fencing proposed along contributory frontages, including:

- The Waterloo Road Frontage
- The frontage interfacing the new street.
- Future site link between 5 Talavera Road

Council will be unsupportive of a fencing strategy that interfaces key contributory frontages, and alternative arrangements must be demonstrated on EIS Submission.

Site Link

As noted in Council's consultation minutes, Council does not consider it necessary for the Applicant to provide the Western Boundary Site link due to CPTED issues.

If the applicant does not provide the western boundary site link, at minimum Council would require the provision of the link road along the eastern boundary in accordance with the Macquarie Park Design Guide Street Type 5.

Information that should accompany a future State Significant Development Application should include:

- Accessibility report – demonstrate that the distance walked from the E2 zone (where residential development may be constructed in the future to the major Waterloo Road Recreation Area is not increased.
- CPTED report – demonstrate the risks involved with the provision of a Though Site Link beside a Data Centre and the additional measures required mitigate those risks.

Overshadowing

The EIS is to include detailed solar access diagrams, particularly demonstrating that the proposed built form allows sufficient Solar Access to the Future Wick's Park. Under the Design Guide Wick's Park has a solar access requirement of 50% 9AM- 3PM.

Contributory frontages

The site is identified as have 2 contributory frontages under the Macquarie Park Design Guide. The Design must demonstrate it provides active frontages.

3.0 Urban Design

Whilst the site is not identified on the Design Excellence Map under the RLEP 2014, Council seeks that the design demonstrates design excellence qualities. It is recommended that the design be reviewed by the NSW State Design Review Panel (SDRP) for a minimum of 2 sessions, to ensure the design supports a safe, active and attractive public realm.

Data Centres provide a lower level of activation and street engagement therefore the design of the interface with Waterloo Road is critical and should be subject to SDRP. Any design should consider the following matters:

- The interface between the development and Waterloo Road should improve the quality and amenity of the public domain.
- Mitigate any environmental impacts such as sustainable design, overshadowing, wind and reflectivity.
- Integration of landscape design, including the configuration and design of the interface along Waterloo Road to incorporate exemplary and innovative treatments and to promote a safe and active edge along Waterloo Road.
- The proposal should contribute and support the Waterloo Road Masterplan by Providing a parklike experience along the Waterloo Road frontage, providing a space for dwelling along the Waterloo Frontage and addressing the Landscape Zone 4 - Forest Path Design considerations.
- As the site is zoned E2/E3 and is mapped under the contributory frontages clause of the Macquarie Park Design Guide, the proposal should respond to this point by:
 - Proposing commercial/activity uses on the ground floor (no parking or servicing)
 - Any data centre function is elevated above the ground floor.
- The site provide active frontages facing the public domain and address the following:
 - Remove/ eliminate fencing
 - All parking to be within basements
 - Improve pedestrian amenity and experience when walking
 - Respond to the developments interface with the future Wick's Park.
- The development minimise environmental impacts such as Noise, Wind, Light Pollution, Urban Heat Island Effect and Visual Impacts.
- The Development demonstrate the implementation of environmentally sustainable development principles such as Energy and Water Reuse
- The design must respond to the context that is within the immediate vicinity. The design must be innovative and clearly distinguishable from other data centres.

4.0 Drainage and Stormwater

The EIS is to include a detailed Stormwater and Drainage Plan that addresses:

- The stormwater drainage design is to be in accordance with Council DCP 2014 8.2 stormwater management technical manual. DCP specifies any new Council Pipe shall be steel reinforced concrete pipe, class 4, of minimum diameter $\geq 375\text{mm}$.
- A longitudinal section is to be provided and shall be cover compliant as per City of Ryde DCP 2014 - Part 8.2 Stormwater Management Technical Manual, table 5.4. Please indicate the cover of the proposed pipe within Council land on the long section, and the type of RCP pipe (steel reinforced Class IV).
- Details of the connection to Council pits shall be included in the Stormwater Management Plan.
- A minimum 1% slope to be proposed for new drainage lines in Council land.
- Existing Council drainage infrastructure details including, diameter, etc. shall be shown on the plans, including details of the connection with the proposed stormwater system. *Note: Please use Council asset numbers.*
- Council Details shall be incorporated, from Council Standard Drawings.
- Pipes are to include rubber ring joints.
- Any proposed junction pit to be constructed with concrete lid.
- Provide a drainage network capacity analysis for new proposed connection/s to Council drainage system. Identify any upgrades to existing drainage system required to support the proposed development.
- The drainage network capacity analysis must be demonstrated to ensure the proposed development can be effectively drained and managed via the downstream drainage network.

5.0 Traffic and Transport

On EIS submission the applicant is to provide a detailed traffic and transport assessment that addresses the following:

- As previously agreed with the proponent, the through-site link (as indicated in Figure 16A of the Macquarie Park Design Guide) is not necessary or desirable. It would essentially be a path between two very large and imposing structures (substation and data centre) and not be perceived as desirable or safe. Furthermore, this concession to this landowner/proponent would be acceptable, provided the proposed street type ST5 to the southeast is provided in future as a suitable, parallel pedestrian and cyclist link, not just a road.
- The applicant is required to submit a Traffic and Parking Impact Assessment (TPIA) report prepared by a qualified traffic engineer in accordance with the requirements of the TfNSW's *Guide to Transport Impact Assessment (2024)* to accompany the Development Application associated with the proposal. The TPIA is required to address/cover (at minimum) the following items:

Assesses the existing traffic conditions within the surrounding road network affected by the proposed development. This assessment needs to be based on weekday morning and afternoon peak hour traffic surveys in recent time between 7:00am – 9:00am and 4:00pm – 6:00pm at the following intersections:

- Waterloo Road, Wicks Road and Halifax Street;
 - Waterloo Road and Lane Cove Road;
 - Waterloo Road and Eden Park Drive ; and
 - Waterloo Road and the site's access driveway.
- Provides a SIDRA traffic modelling assessment of the following scenarios:
 - Existing Conditions;
 - Existing + Post-Development Conditions; and

- 10-year projected traffic conditions (with and without the development traffic), which incorporates background traffic growth for Macquarie Park established within Transport for NSW's Strategic Traffic Forecasting Model (STFM).
- Recommends appropriate ameliorative measures to minimise the impact of the proposed development on traffic safety and efficiency within the surrounding public road network that are to be delivered by the applicant. These measures can comprise of active transport improvements to encourage greater walk and cycle trips as a means to reduce traffic generated by the proposed development.
- Ensures the vehicular access, off-street parking and heavy vehicle servicing arrangements are designed to comply with the following:
 - The Australian Standard for Parking Facilities Part 1: Off-Street Parking (AS 2890.1);
 - The Australian Standard for Parking Facilities Part 2: Off-Street Commercial Vehicle Facilities (AS2890.2);
 - The Australian Standard for Parking Facilities Part 3: Bicycle Parking Facilities (AS2890.3);
 - The Australian Standard for Parking Facilities Part 6: Off-Street Parking for People with Disabilities (AS2890.6); and
 - Ryde City Council's Development Control Plan
- Provides a swept path assessment which shall be undertaken to demonstrate that the largest/longest vehicle to be serviced on site is capable of accessing and vacating the site via the proposed access driveway in a forward direction without any encroachment on adjoining public and private infrastructure. Additional swept path plans are to be provided to demonstrate that largest/longest vehicle can turn at the critical nearby intersections without encroaching on the opposing lanes.
- The relatively low number of car parking spaces proposed (32) is supported in principle, however the TPIA should provide more detailed justification for the number proposed, including a comparison with similar data centre developments proposed and/or approved in Macquarie Park and greater Sydney.
- The TPIA should include a draft Workplace/Green Travel Plan. This is to demonstrate how the development will minimise private vehicle travel and promote active, public and shared transport alternatives, in line with the broad aim of Ryde Integrated Transport Strategy to promote sustainable transport.
- The applicant is required to submit a detailed civil design plans for the new road reservation along the eastern portion of the subject site, as identified in the Macquarie Park Design Guide. The detailed civil design plans must include a signage and linemarking plan.

6.0 Development Engineering

Stormwater Management

The site rises approximately four metres from east to west and currently drains towards Waterloo Road. It is noted that the previous development consent from 2000 (which was for alterations to the building and use as a data centre) did not involve significant building works, and therefore no stormwater management measures such as on-site detention or retention and re-use of roofwater were provided on site.

On site detention should be provided in the building footprint or in an already impervious area. It should not be in a landscaped area, as this will not maximise permeable surfaces or contribute to deep soil.

Outflow from the development will be best directed towards the south-eastern corner, either to the new road or to Waterloo Road, depending on existing and proposed pit locations and levels. To achieve gravity drainage, the detention tank should be located in the ground floor of the building.

The water management system for the development must incorporate on site detention, rainwater retention and re-use, and water quality measures.

Modelling using such programs as DRAINS, MUSIC or equivalent is to be undertaken and the models provided with the EIS for Council to assess.

Waste and Service Requirements

The design vehicle for the loading dock will be a heavy rigid vehicle (HRV) to AS2890.2:2018 *Commercial vehicle facilities*.

The loading dock is shown at one metre below ground floor level. This should provide the required 4.5 metres of headroom. Dimensions of such elements as beams and overhead ducting should be considered at design stage, to ensure that this will be the case. Turning path diagrams for forward entry and egress of the largest type of vehicle to enter the loading dock are to be provided in the traffic report, including the locations of any columns which may restrict access.

7.0 Landscape Design

The following elements are required to be addressed in the landscape design for the proposal:

- The existing trees along Waterloo Road must be retained
- Be consistent with the Waterloo Road Master Plan
- Be Consistent with the Macquarie Park Design Guide
- An Arboricultural Impact Assessment (AIA) to be provided
- 20% Deep Soil Area and 25% Tree Canopy Cover is required as per the Macquarie Park Design Guide

8.0 Environmental Health

The Following matters are to be addressed on EIS Submission:

- An Air Quality Assessment (including any emissions from the back-up power system) is required. The air quality assessment should assess both the construction and operational phase of the development including worst case scenario predictions from the use of back-up power generation.
- Noise and Vibration Impact Assessment (including accumulative impacts to the surrounding area and assessment of potential future surrounding sensitive land uses). The assessment should look at both normal and emergency operation, assess impact on road traffic noise, construction noise including the requirement for a Construction Noise Management Plan prior to CC.
- A Ground Water Assessment is required (including Geotechnical Report assessing Groundwater, Salinity and Acid Sulphate Soils).
- A Contamination Assessment is required to ensure that the site is suitable for the proposed use.

- A Hazardous Materials Assessment is required in accordance with Resilience and Hazards SEPP 2021.
- A Waste Management Plan is required for both construction and operation phases of the development.
- Details including location/specification and proposed registration of all Cooling Towers.
- Confirmation that no Electromagnetic Emission Assessment is required (potential for satellite dishes).
- Details of stormwater pollution prevention devices installed on the site considering the proximity of this proposed development to the Lane Cover River National Park.
- Details in respect to any fuel storage, including but not limited to sufficient bunding, stormwater shut off valves, first flush systems, storage tanks to demonstrate sufficient design pollution prevention control measures to prevent water pollution escaping from the site, entering the stormwater system and subsequently the local environment.

9.0 Development Contributions and Planning Agreement

- The application must include details of any proposed planning agreement. Consultation should occur directly with the Council and commence ahead of any EIS being submitted.
- A detailed and itemised QS report prepared by a registered member of the AIQS.

10.0 Visual impact Assessment and Photomontages

A detailed Visual Impact Assessment (VIA) that includes photomontages from various aspects of the surrounding locality should be provided with the application. To provide photorealistic visualisation in both 'before' and 'after' scenarios at eye height from a number of critical vantage points. The VIA must consider viewpoints from:

- Future Wick's Park
- Land within the Lachlan's Line Precinct
- Low Density Receivers on Epping Road

11.0 Cumulative Development Impacts

The EIS must consider the developments impact in conjunction with all other development proposals in the planning pipeline and under construction, particularly the proposed Warehouse facility at 144 Wicks Road (SSD-48853239); development in the Lachlan's Line Precinct and other major development proposals in the precinct. The EIS must include appropriate mitigation measures to reduce cumulative development impacts. The EIS must consider but is not limited to:

- Cumulative Traffic Management
- Cumulative Noise Impacts
- Cumulative Wind Impacts
- Construction Management
- Social and Economic Impacts

Land Use Conflict Risk Assessment (LUCRA)

A detailed LUCRA is required to be prepared which assess the potential for land use conflict particularly with regards to residential development located within 250m of the site, The future Wicks Park and adjoining Ausgrid Substation.

12.0

Public Domain

Existing Waterloo Road Frontage

Public domain upgrade works along the Waterloo Road frontage of the site may include but are not necessarily limited to the following:

- Upgrade of Council road pavement assets.
- Upgrade to or installation of new granite footways or shared user paths.
- Undergrounding of overhead utilities along and adjoining the site frontages.
- Installation of new or upgrade of existing street lighting assets.
- Upgrade to pedestrian infrastructure such as pedestrian kerb ramps.
- Provision of street furniture such as garbage bins, bike loops etc..
- Parking sensors and parking metres
- Removal of any encroachments onto Council land.
- Upgrade of stormwater infrastructure to facilitate the development and adjoining public domain areas.
- Adjustment, relocation or lowering of subsurface utility assets as required to facilitate the new development and adjoining public domain upgrade works.
- Installation of street trees in tree pits and where specified in strata vault systems to facilitate the ongoing health of street trees.
- Any works required to facilitate traffic management associated with the new development – to be specified by Council's Transport team.
- Spare communications conduits and access pits to be installed to provide future non-destructive installation of comms utilities within existing roads to be upgraded and new road reserves to be delivered as part of the development works.

As per the requirements of the Updated Design Guide issued by DPHI in November 2024, the Waterloo Road frontage of the site is to be upgraded in accordance with Street Type 2 – 'ST2 – Waterloo Road Green Corridor,' as per the Design Guide's Street Network Map – Figure 4a/ Page 26.

Indicative sections and layout for street type "ST2" is shown below (Figure 1) of the Updated Design Guide. It should be noted that the site frontage is to provide for a 20m width wide road reserve rather than the adjoining section of Waterloo Road, which is to be a 30m width green corridor. It should also be noted that a 10m width Linear Park is required within the site boundaries along the Waterloo Road frontage.

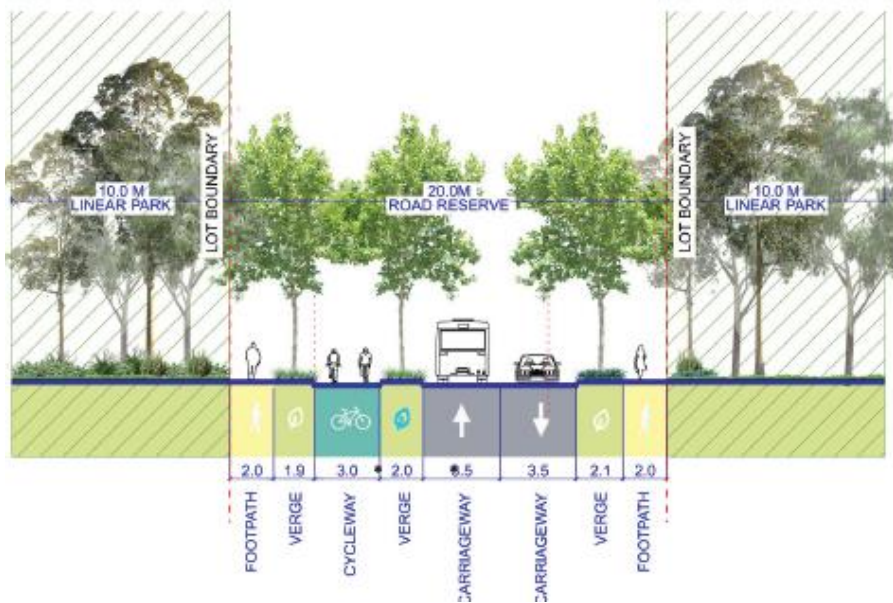


Figure 1 – Section for Street Type 2 from Design Guide



Figure 2 – Aerial view of Street Type 2 from Design Guide

As per the requirements of the Updated Design Guide issued by DPHI in November 2024, the site is required to deliver a 20m width road asset extending from the Waterloo Road frontage along the eastern boundary. The requirement is detailed within the Design Guide's Street Network Map – extract shown in Figure 3. The street type required is 'ST5 – 20M Secondary Circulation Route'. See extract below: -

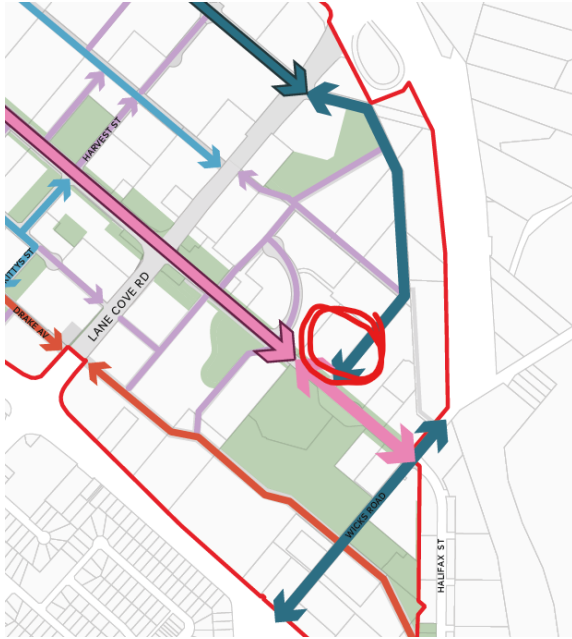


Figure 3 – Extract of street network map from Design Guide

Indicative sections and layout for street type “ST5” is shown below as per Figure 9 of the Updated Design Guide.

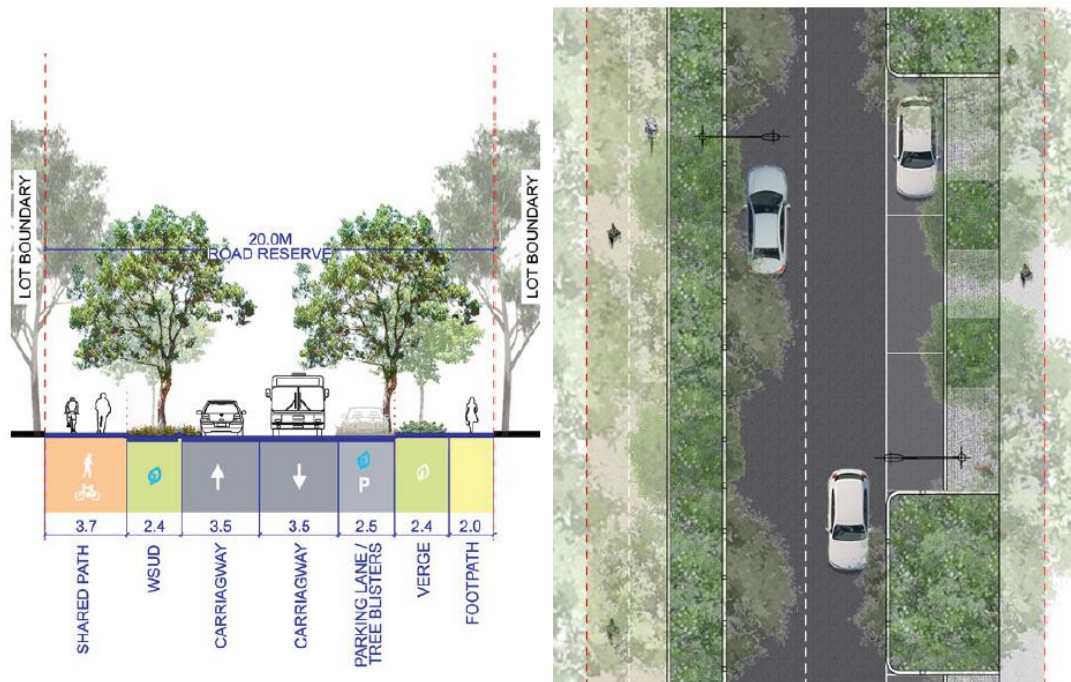


Figure 4 – Section and aerial view for Street Type 5 from Design Guide

Works within the new road reserve asset may include the provision of a temporary arrangement to facilitate turning manoeuvres for the interim period until through access is enabled via future extension of the new ST5 road.

A Public Domain Concept plan, incorporating all elements of the public domain upgrade works along the Waterloo Road frontage and the new road infrastructure to be delivered as part of the of the development should be submitted as part of the application documentation.

The concept plan will serve as a record of the required scope of public domain works and assist in identifying any potential issues or conflicts.

Creation of Unique and Distinguishable Neighbourhoods

The Macquarie Park Place Strategy states that the creation of 7 unique and distinguishable neighbourhoods within the Macquarie Park Innovation District is one of its objectives. The site of the proposed development lies within Neighbourhood No.5 – Burbigal (Morning). The Macquarie Park Updated Design Guide includes a range of aesthetic features and finishes, as well as tree species which should be incorporated into the public domain design in order to achieve the objective of unique neighbourhoods within the precinct.

For Neighbourhood No.5, these specifications are included in the Updated Design Guide on pages 74-75. Details relating to creation of a unique neighbourhood will be reviewed at a later stage in the public domain design and this requirement is only flagged at this stage.

Operational Issues Associated with Crane Lifts

Council's experience with data centres in Macquarie Park has been that there is a need for extremely heavy crane lifts from time to time during the operational life of the developments. These extreme lifts are required to replace or add heavy equipment such as generators or transformers and are sometimes in excess of 500 tonnes. Crane lifts of this magnitude are disruptive and have the potential to severely impact Council's road infrastructure which is required to support the lifts.

To mitigate the potential impact of extreme crane lifts on Council's road pavement assets, it is requested that the applicant consider this ongoing requirement during the life of the development and arrange a crane lift area within the site to prevent extreme loads being transferred to Council's road assets.

Alternatively, if it is anticipated that Council roads will need to be utilised to facilitate future crane lifts, the developer should indicate a maximum load that will be transferred to Council's road assets. The road pavement should then be designed to accommodate the specified load through an alternate, more resilient road pavement design. Depending on the operational requirements and potential lift locations, it is possible that the more durable section of road pavement could be limited to a specific crane lift area.

If the developer specifies a maximum lift weight to be transferred to Council roads during operation, an operational condition should be imposed limiting crane lift weights to that particular weight. If the developer states that there will be no ongoing operational requirements for heavy crane lifts, then crane lifts should be limited, via operational conditions, to a weight that is known not have any risk of damage to the road pavement.

The following information should be provided as part of the ongoing operational requirements, post occupation, of the site, to enable Council to properly assess the potential impact upon its road pavement assets: -

- Will there be an operational requirement including maintenance, replacement, upgrades, to complete heavy lifts utilising future Council roads to support the lifts.
- If there will be a requirement, what will be the maximum mass of the crane lifts.
- Will crane lifts supported by future or existing Council roads be limited to one crane set up location or will this vary along the road reserves fronting the site.
- If the crane set up area will be limited, please specify the area that it will impact.

Management of Subsurface Utilities

Council's experience with new data centres constructed in Macquarie Park to date, has been that there is a large volume of sub-surface communications utilities that are installed, maintain and upgraded on regular basis, in the road reserves surrounding the new data centres, which results in the following consequences for an extended period:

- Dilapidation of Council infrastructure – roads, footpaths.
- Disruption to pedestrian vehicular access due to consistent trenching of Council infrastructure and other activities carried out by utility authorities.
- Exposure of the community to trip hazards associated with ongoing disrepair of footpaths.
- Environmental consequences resulting from ongoing works undertaken to install, upgrade and maintain communications utility assets.

The proposed data centre is within the immediate proximity of a number of other existing or proposed data centres which is expected to result in a large cumulative impact upon Council infrastructure. It is critical that provisions are made to minimise the impact of the consistent and ongoing installation, upgrade and maintenance of utilities of associated with the data centre. Council's experience is that initial installations of communications utilities associated with data centres, established during construction, represent only a small proportion of comms assets connected to the data centre of ensuing years.

As such it is critical that planning for the data centre consider how large volumes of future communications assets can be installed with minimal ongoing impact and disruption to public domain infrastructure. Please provide additional information relating to management of post-construction expansions of communications asset installations, as per the information requested items listed below.

Provision for Future Subsurface Communications Infrastructure

As noted, the proposed development site is within close proximity of a number other existing or proposed data centres. Council's experience with data centres in Macquarie Park has been that they result in the installation of large volumes of subsurface communications infrastructure, within their broad vicinity, for a number of years following the commencement of operation. These installations, often involve consistent trenching of public domain infrastructure, usually footways in busy pedestrian thoroughfares. These activities accelerate the dilapidation of Council infrastructure and often result in Council footpaths being in a constant state of temporary restoration.

To prevent this issue Council requires the provision of spare conduits installed to provide future non-destructive installation of comms utilities within new road reserves to be delivered along the site frontages. Studies by Council has demonstrated that Council footpaths have been trenched up to 10 times in particular locations surrounding data centres within 6 years of the commencement of operation of new data centres. As a result, Council will request the installation of eight new spare conduits beneath the new footways along the site frontages in order to facilitate non-destructive future installations. Final specifications, arrangement and depth will be subject to further consultation with communications utility authorities.

Matters to be outlined in SEARS

The following information should be included in the application documentation: -

- A public domain concept plan detailing the full extent of the roads to be delivered, addressing the requirements of the Updated Design Guide issued by DPHI and the above issues raised by Council. The plans should address the specified widths and layouts of the new roads to be delivered.
- Provide longitudinal sections demonstrating adequate connection of the new roads to be delivered as part of the proposal, with existing Council roads or future roads assets subject to future development approvals. The followings longitudinal sections should be provided: -
 - Longitudinal section for proposed new 20m road - “ST5 - Secondary Circulation Route” between the centre line of Waterloo Road and the future intersection of the new 14.5m width “ST10 Local Street” and new road to be partially delivered under this development - see below.



Figure 5 – Extract of street network plan from Design Guide

- Sections of kerb returns and centre line demonstrating adequate connection between existing Waterloo Road and new 20m “ST5 - Secondary Circulation Route” extending along the site’s eastern boundary.
- Proposed road levels should consider the following: -
 - Pedestrian and vehicular access to lots along future portions of the road.
 - Potential drainage infrastructure required to accommodate future extension of the new road.
 - Requirements to ensure compliance with the Disability Discrimination Act in regard to future footpaths.
 - Austroads requirements in regard to longitudinal grades and crossfalls.
 - Manoeuvring of Heavy Rigid Vehicles along new road reserves.
- The following additional information relating to subsurface infrastructure is requested by Council to enable a comprehensive review of factors impacting public domain infrastructure:
 - A report detailing how installation of the required subsurface infrastructure – not only prior to occupation, but also during expansion of infrastructure post

occupation - will be installed at compliant depths and allocated alignments within the verge area to prevent future obstruction to public infrastructure upgrades. The report should also provide conceptual details of how subsurface installation will be managed to minimise the ongoing impact of trenching of public infrastructure and disruption to the community.

- Consideration of how the future installation, upgrade and maintenance of subsurface utilities associated with the ongoing operation of the data centre can be undertaken without dilapidating Council infrastructure, disruption to vehicular and pedestrians movements and impacting the surrounding environment should be covered by the report. Specific consideration should be given to the provision of infrastructure to enable ongoing non-destructive access to subsurface utilities which would minimise the above issues.
- Public domain concept plans should denote the installation of eight spare subsurface communications conduits to facilitate future non-destructive along all new roads to be delivered as part of the proposal. The installation of spare conduits is to form part of the public domain upgrade works and be handed over to Council upon completion. The reason for the requirement to provide spare conduits to Council is to proactively prevent consistent trenching of public domain infrastructure resulting from large volumes of new sub surface communications infrastructure associated with the data centres operating in the precinct. The provision of spare conduits will have a direct benefit for occupants of the developments in the form of less disruption and less dilapidation of public domain infrastructure. Final details of the spare conduit installations, including depth, size, alignment etc will be subject to review of existing sub-surface infrastructure and detailed information should be provided for Council endorsement, prior to approval under the Roads Act.
- The following information should be provided in regard to the ongoing operational requirements, post occupation, of the site, to enable Council to properly assess the potential impact upon its road pavement assets:
 - Will there be an operational requirement including maintenance, replacement, upgrades, to complete heavy crane lifts utilising future Council roads to support the lifts.
 - If there will be a requirement, what will be the maximum mass of the crane lifts.
 - Will crane lifts, supported by future Council roads be limited to one crane set up location or will this vary along the road reserves fronting the site.
 - If the crane set up area will be limited, please specify the area that it will impact.

End Submission



Your ref: SSD-91297457
Our ref: DOC25/701933

Jeffery Peng
Department of Planning, Housing and Infrastructure
4 Parramatta Square, 12 Darcy Street
Parramatta NSW 2150

12 September 2025

Subject: Request for Secretary's Environmental Assessment Requirements (SEARs) for 23 -25 Waterloo Road, Macquarie Park (SSD-91297457) (City of Ryde)

Dear Jeffery,

Thank you for your email received on 19 August 2025, requesting input on SEARs for the above State significant development (SSD) from the Conservation Programs, Heritage and Regulation (CPHR) Group of the NSW Department of Climate Change, Energy, the Environment and Water.

CPHR has reviewed the Scoping Report prepared by Willowtree (18 August 2025) recommends the proponent address the requirements below and at Attachment A.

In relation to point 4 of the recommended biodiversity environmental assessment requirements, please note the minimum information and spatial data requirements are in Tables 24 and 25 of the [Biodiversity Assessment Method 2020 \(BAM\)](#). Other requirements, such as those relating to the BAM Calculator and Biodiversity Offset Assessment Management System, are detailed in the [guides, tools and databases](#) webpage.

Should a waiver to the requirement for a BDAR be sought, it must be clearly demonstrated that the proposed development is not likely to have any significant impact on biodiversity values.

Development that requires clearing of native vegetation or additional biodiversity impacts as prescribed by clause 6.1 of the *Biodiversity Conservation Regulation 2017* is likely to require a BDAR. Any request for a BDAR waiver must include the information requirements set out in Tables 1 and 2 of the DPIE guidelines on [How to apply for a biodiversity development assessment report waiver for a Major Project Application](#). The proponent can find further information on the BDAR waiver process on the [Biodiversity development assessment report waiver](#) webpage.

CPHR notes the site is not impacted by flooding. Accordingly, no flood assessment requirements are applicable for the SEARs.

Should you have any queries regarding this matter, please contact the Greater Sydney Region Planning Team at rog.gsrplanning@environment.nsw.gov.au.

Yours sincerely,

Louisa Clark
Director Greater Sydney Branch
Regional Delivery
Conservation Programs, Heritage and Regulation Group

CPHR Environmental Assessment Requirements – 23-25 Waterloo Road, Macquarie Park (SSD-91297457) (City of Ryde)

Biodiversity

1. Biodiversity impacts related to the proposed development are to be assessed in accordance with Section 7.9 of the [Biodiversity Conservation Act 2016](#) (BC Act), the [Biodiversity Assessment Method](#) 2020 (BAM) and documented in a [Biodiversity Development Assessment Report \(BDAR\)](#). The BDAR must include information in the form detailed in the BC Act (s 6.12), *Biodiversity Conservation Regulation 2017* (s 6.8) and BAM, including an assessment of the impacts of the proposal (including an assessment of impacts prescribed by the regulations).
2. The BDAR must document the application of the avoid, minimise and offset framework including assessing all direct, indirect and prescribed impacts in accordance with the BAM.
3. The BDAR must include details of the measures proposed to address the offset obligation as follows:
 - The total number and classes of biodiversity credits required to be retired for the development/project.
 - Any proposal to make a payment to the Biodiversity Conservation Fund.
4. The BDAR must be submitted with all spatial data associated with the survey and assessment as per the BAM.
5. The BDAR must be prepared by a person accredited in accordance with the Accreditation Scheme for the Application of the *Biodiversity Assessment Method Order 2017* under s6.10 of the BC Act.

Water and Soils

6. The EIS must map the following features relevant to water and soils including:
 - Acid sulfate soils (Class 1, 2, 3 or 4 on the Acid Sulfate Soil Planning Map).
 - Rivers, streams, wetlands, estuaries.
 - Wetlands.
 - Groundwater.
 - Groundwater dependent ecosystems.
 - Proposed intake and discharge locations.
7. The EIS must describe background conditions for any water resource likely to be affected by the development, including:
 - Existing surface and groundwater.
 - Hydrology, including volume, frequency and quality of discharges at proposed intake and discharge locations.
8. The EIS must assess the impact of the development on hydrology, including:
 - Effects to downstream rivers, wetlands, estuaries, marine waters and floodplain areas.
 - Effects to downstream water-dependent fauna and flora including groundwater dependent ecosystems.

- Impacts to natural processes and functions within rivers, wetlands, estuaries and floodplains that affect river system and landscape health such as nutrient flow, aquatic connectivity and access to habitat for spawning and refuge (e.g. river benches).

End of Submission.



Our ref: DOC25/700097-3

1 September 2025

Jeffrey Peng
Senior Environmental Assessment Officer
Department of Planning, Housing and Infrastructure

By Major Projects Portal

**EPA Planning Advice Request on SEARs for 23-25 Waterloo Road Data Centre
(SSD-91297457)**

Dear Jeffrey

I am writing in response to your request for the NSW Environment Protection Authority (EPA) to comment on the Secretary's Environmental Assessment Requirement's (SEARs) for the proposed construction and operation of a data centre (SSD-91297457) at 23-25 Waterloo Road, Macquarie Park.

The EPA understands the proposal is for a data centre involving:

- Demolition and site preparation works
- 39 backup generators
- 0.835 tonnes of diesel storage and 392 cabinets for lithium-ion battery storage
- 18 data halls with a total capacity of 70 megawatts.

Based on the information provided, it is noted:

- the proposal does not constitute a Scheduled Activity under Schedule 1 of the Protection of the Environment Operations Act 1997 (POEO Act) and so will not require an Environment Protection Licence under this Act, particularly regarding the thresholds in Clause 9 Chemical Storage (2,000t diesel storage) or Clause 17 Energy Generation (back-up plant operation exceeds 200hrs/pa).
- the proposal is not being undertaken by or on behalf of a NSW Public Authority, nor are there activities for which the EPA is the appropriate regulatory authority.
- the site is not being regulated by the EPA under the *Contaminated Land Management Act* (1997).

As such, the EPA is not considered to be the Appropriate Regulatory Authority for the proposal with regards to relevant matters under the POEO Act.

The EPA provides our recommended information and assessment requirements relating to data centres in **Attachment A** for consideration by the Department of Planning, Housing and Infrastructure (DPHI) as part of its assessment. The EPA may be consulted further should DPHI wish to seek clarity over licensing or to review any draft conditions of consent.

NSW Environment Protection Authority

As the environmental steward and regulator of our State we are committed to a sustainable future. Join us on our mission to protect tomorrow together.

Phone:
131 555

Email:
info@epa.nsw.gov.au

Website:
epa.nsw.gov.au

Visit:
6 Parramatta Square
10 Darcy Street
Parramatta NSW 2150

Mail:
Locked Bag 5022
Parramatta NSW 2124



If you have any questions about this request, please contact Jenny Gustafson via email at environmentprotection.planning@epa.nsw.gov.au.

Yours sincerely

A handwritten signature in black ink, appearing to read 'Jackson', written in a cursive style.

Christie Jackson
Unit Head – Environment Protection Planning
NSW Environment Protection Authority

ATTACHMENT A - Information and assessment requirements for data centres

The EPA provides information and assessment requirements below relating to data centres for consideration by DPHI as part of its assessment of the proposal.

a. Licencing requirements

Proposals should clearly identify whether an Environment Protection Licence (EPL) will be required under the *Protection of the Environment Operations (POEO) Act 1997*. Information should be provided addressing the following thresholds in Schedule 1 of the POEO Act.

- Clause 9 - Chemical Storage (diesel storage) – 2,000t,
- Clause 9 - Chemical Storage (pressurised gases) – 20t,
- Clause 17 - Energy Generation (back-up generators) – 30MW and 200hrs/pa,
- Any other activity in Schedule 1 that may be undertaken at the premises.

b. Details of generator testing

Proposals should clearly outline the proposed testing regime for back-up generators, and provide detailed information regarding:

- All testing types and details (e.g. monthly, annual) of the maintenance schedule and unscheduled works that would require use of back-up diesel generators (e.g. electrical infrastructure works),
- Number of tests for each generator/year,
- Number of generators to be tested at any one time,
- Testing duration for each generator (including cool down),
- Load during testing,
- Time of the day testing will occur,
- Maximum number of tests per day,
- Total number of cumulative hours generators will be tested and operated per annum.

c. Assessment of air quality and noise impacts

Proposals should prepare a Noise and Vibration Impact Assessment (NVIA) and Air Quality Impact Assessment (AQIA). These assessments should be prepared in accordance with:

- *Approved Methods for Modelling and Assessment of Air Pollutants in NSW 2022*,
- *Noise Policy for Industry 2017 (including testing, maintenance and emergency operation of generators)*,
- *Interim Construction Noise Guideline*.

Compliance with *Protection of the Environment Operations (Clean Air) Regulation 2022*

Where a data centre, or future changes to a data centre, exceed the threshold for Energy Generation (back-up generators – 200hr/pa) in the POEO Act and require an EPL, the Proposal will need to comply with emission concentration limits listed in Schedule 2 and Schedule 3 of the Clean Air Regulation (including NO_x).

Modelling

Assessment reports should include modelling scenarios and inputs that represent reasonable worst-case and address:

- Typical operations,
- Operational scenarios that include generator testing,
- Emergency scenario (loss of power and 100% operation of back-up generators), including details on likelihood of occurrence,
- Consideration of cumulative impacts, including quantitative assessment where there are potential testing conflicts with any nearby data centres or industries.

Mitigation

Assessment reports should include an appropriate level of information as required by the relevant guidelines on proposed mitigation and management measures, including:

- Noise – A feasible and reasonable assessment of mitigation consistent with Chapter 3 of the Noise Policy for Industry (NFI). This includes impacts from emergency scenarios which may consider the likelihood, frequency and duration of emergency events as part of the assessment.
- Air – Should commit to replacement of generators with best available technology.
- Mitigation measures to address cumulative impacts should be considered – including consideration of minimising conflict and coordinating testing times with other nearby data centres or industries and notification protocols for impacts receivers/receptors during emergency/maintenance scenarios.

d. Greenhouse Gas Emissions

Proposals are to provide GHG emissions estimates and consider whether they will exceed 25,000t CO₂-e per annum during its operational life, which would trigger reporting under the National Greenhouse and Energy Reporting (NGERs) scheme.

Proposals not requiring an Environmental Protection Licence will not be subject to the requirements in the NSW Large Emitters Guide (large emitters guide). However, the EPA encourages consistency with the principles of this guide to reduce scope 2 emissions as much as practicable.

EPA encourages consideration of the following measures to reduce scope 2 emissions (see Box 8 p27 in large emitters guide).

- Energy efficiency practices,
- Installation of on-site renewable power generation,
- Purchasing renewable energy certificates,
- Entering into green power purchase agreements.

Should any GHG commitments be made, DPHI should consider including those GHG commitments as part of conditions of consent for the project.

e. Waste Management

For data centre proposals that include forms of Battery Energy Storage Systems (BESS) the proponent should be made aware that an EPL is required to transport higher risk wastes (classification of waste batteries should be applied in accordance with EPA's waste classification guidelines) and waste tracking requirements also apply.

Compliance with relevant dangerous goods transport legislation is required when transporting batteries considered as dangerous goods (as per the Dangerous Goods (Road and Rail Transport) Act 2008).



File Ref. No: FRN25/2525 BFS25/5683 8000044565
TRIM Doc. No: D25/95273
Contact: Senior Firefighter Ross Blanchard

21 August 2025

JEFFREY PENG
NSW Department of Planning, Housing and Infrastructure
Locked Bag 5022
PARRAMATTA NSW 2124

Dear Jeffrey,

Re: Advice on Secretary's Environmental Assessment Requirements (SEARs) – WATERLOO ROAD DATA CENTRE- 23-25 Waterloo Road, Macquarie Park NSW 2113 SSD-91297457

Fire and Rescue NSW (FRNSW) acknowledge correspondence received on 19 August 2025, requesting input into the preparation of the SEARs for the WATERLOO ROAD DATA CENTRE- 23-25 Waterloo Road, Macquarie Park NSW 2113 SSD-91297457. FRNSW have reviewed the SEARs along with the Scoping Report with particular focus to Section 1 and section 7.12.

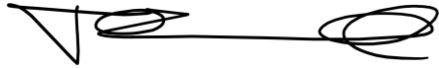
The Scoping Report details a Data Centre with Battery Energy Storage. It has been the experience of FRNSW that Data Centres present special problems of fighting fire and suitable additional provisions are likely to be required in accordance with E1D17 and E2D21 of the National Construction Code 2022¹.

FRNSW will likely recommend a Fire Safety Study (FSS) be developed in accordance with the Hazardous Industry Planning Advisory Paper No 2² as a condition of consent. The FSS should be used to inform the design and as such it is FRNSW Position³ that the FSS be developed to the satisfaction of FRNSW prior to any further submission being made to FRNSW; this includes: an Initial Fire Safety Report (IFSR) and / or Performance-Based Design Brief / Fire Engineering Brief Questionnaire (FEBQ).

The FSS should be prepared consistent with the relevant FRNSW Fire Safety Guidelines and FRNSW Technical Information Sheets⁴.

Project proponents undertaking the FSS are to engage directly with FRNSW by submitting all correspondence electronically to FireSafety@fire.nsw.gov.au and reference FRNSW file number FRN25/2525. Further information regarding FRNSW Meetings⁵ and FRNSW Written Reports⁶ can be found at the FRNSW Building Fire Safety Industry Portal⁷.

Yours sincerely,



Superintendent James O'Carroll
Manager
Fire Safety Liaison Unit

Cc: jeffrey.peng@planning.nsw.gov.au

¹ <https://ncc.abc.gov.au/editions/ncc-2022>

² <https://www.planning.nsw.gov.au/sites/default/files/2023-03/hazardous-and-offensive-planning-advisory-paper-no-2-fire-safety-study-guidelines.pdf>

³ <https://www.fire.nsw.gov.au/page.php?id=9447&position=51>

⁴ <https://www.fire.nsw.gov.au/page.php?id=9166>

⁵ <https://www.fire.nsw.gov.au/page.php?id=9193>

⁶ <https://www.fire.nsw.gov.au/page.php?id=9156>

⁷ <https://www.fire.nsw.gov.au/page.php?id=9140>

Jeffrey Peng
Department of Planning, Housing and Infrastructure
via Major Projects Portal

State Environmental Planning Policy (Transport and Infrastructure) 2021
State Significant Development Application - SSD-91297457
23-25 Waterloo Road, Macquarie Park

19 August 2025

Dear Jeffrey Peng,

Sydney Metro refers to the Secretary's Environmental Assessment Requirements (SEARs) request for State Significant Development number (SSD) SSD-91297457, submitted by Greenbox Architecture Pty Ltd, which has been referred to Sydney Metro via the Major Projects Portal on 19 August 2025, in accordance with section 2.99 of the *State Environmental Planning Policy (Transport and Infrastructure) 2021* (T&ISEPP).

Transport for NSW (TfNSW) has delegated its rail authority functions in relation to the Sydney Metro Northwest rail corridor to Sydney Metro. Therefore, Sydney Metro is the relevant rail authority for the purposes of the T&ISEPP.

Concurrence of Sydney Metro is not required

As this is an SSD application, the provisions of section 2.99 of the T&ISEPP do not apply. Section 4.13(2A) of the *Environmental Planning and Assessment Act 1979* excludes concurrence or consultation requirements from applying to development applications for SSD, unless an environmental planning instrument requires concurrence or consultation to SSD. As section 2.99 of the T&ISEPP does not require concurrence to be provided in the context of an SSD, concurrence is not required for the SSD.

Notwithstanding this, in order to ensure the appropriate management and mitigation of the proposed development's impacts on the Sydney Metro Northwest rail corridor, Sydney Metro has reviewed the Scoping Report that was uploaded onto the Major Projects Portal on 19 August 2025, including having regard to the matters outlined in the T&ISEPP.

Based on this review, Sydney Metro requests:

- Consideration of the *State Environmental Planning Policy (Transport and Infrastructure) 2021*
- Compliance with the Sydney Metro Underground Corridor Protection Technical Guidelines (2025) and/or the Sydney Metro At-Grade and Elevated Sections Corridor Protection Guidelines (2025), as applicable.
- Consultation with Sydney Metro.

Sydney Metro thanks the Department of Planning, Housing and Infrastructure for its assistance.

OFFICIAL

Level 43, 680 George Street, Sydney NSW 2000
PO Box K659, Haymarket NSW 1240

sydneymetro.info
ABN 12 354 063 515
SM-25-00167629

Please contact Peter Bourke, Senior Manager – Corridor Protection or Joshua Murray, Planner – Corridor Protection via email sydneymetrocorridorprotection@transport.nsw.gov.au should you have any further enquiries on this matter.

Sincerely,



Peter Bourke
Senior Manager, Corridor Protection
Northwest & City Operations
Sydney Metro

SSD-91297457 – 23-25 Waterloo Road, Macquarie Park

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